

Court No. - 3

Case :- WRIT - C No. - 37208 of 2023

Petitioner :- Madan Kumar Vishkerma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- A.K. Maurya I

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

On the request of learned counsel for the petitioner, put up this case on 28.11.2023 as fresh.

Order Date :- 17.11.2023

M.S. Ansari

(Manoj Bajaj, J.) (Siddhartha Varma, J.)

Court No. - 3

Case :- WRIT - C No. - 37208 of 2023

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Counsel for Petitioner :- A.K. Maurya I

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Siddhartha Varma, J.

Hon'ble Shekhar B. Saraf, J.

Contention of the learned counsel for the petitioner is that the last time the demand was raised was on 29.09.2003 and, thereafter, no demand had been raised.

Learned counsel for the Electricity Department may show to the Court as to when the last demand was raised.

Put up this case as a fresh case on 7.12.2023.

Order Date :- 28.11.2023

vkj

Court No. - 3

Case :- WRIT - C No. - 37208 of 2023

Petitioner :- Madan Kumar Vishkerma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- A.K. Maurya I

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Siddhartha Varma,J.

Hon'ble Syed Qamar Hasan Rizvi,J.

1. Sri Udit Chandra, learned counsel for the Electricity Department, states that to explain as to how bills with regard to Mohan Lal were raised after 29.09.2003, he needs to file a counter affidavit.

2. List this case as fresh on 20.12.2023.

Order Date :- 7.12.2023

Abhishek Gupta

(Syed Qamar Hasan Rizvi,J.) (Siddhartha Varma,J.)

Court No. - 3

Case :- WRIT - C No. - 37208 of 2023

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Counsel for Petitioner :- A.K. Maurya I

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Siddhartha Varma,J.

Hon'ble Shekhar B. Saraf,J.

Counter affidavit filed by learned counsel for respondent no.4 be kept on record.

Rejoinder affidavit, if any, be filed within a period of ten days.

Put up this as fresh on 3.1.2024.

Order Date :- 20.12.2023

Dev/-

(Shekhar B. Saraf,J.) (Siddhartha Varma,J.)

Court No. - 21

Case :- WRIT - C No. - 37208 of 2023

Petitioner :- Madan Kumar Vishkerma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- A.K. Maurya I

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. Rejoinder affidavit filed today is taken on record.
2. List as fresh on 9.1.2024 to enable counsel for the respondent to go through the rejoinder affidavit.

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, A.C.J.)

Order Date :- 3.1.2024

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 37208 of 2023

Petitioner :- Madan Kumar Vishkerma

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- A.K. Maurya I

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Manoj Kumar Gupta, Acting Chief Justice

Hon'ble Kshitij Shailendra, J.

1. Heard Sri A.K. Maurya, learned counsel for the petitioner, Sri Udit Chandra, learned counsel for respondent nos. 3 to 5 and Sri Rajiv Gupta, learned Additional Chief Standing Counsel for State-respondents.

2. Petitioner is aggrieved by order dated 19.07.2023 passed by respondent No. 4 deciding the dispute relating to carry forward of dues of the alleged erstwhile tenant of the premises owned by the petitioner as well as dispute relating to release of new connection.

3. The finding recorded in the impugned order is that one Mohan Lal was the tenant of the petitioner and there were dues outstanding against him. The same is to be paid before any new connection could be granted.

4. Learned counsel for the petitioner submits that the dues are for a period more than two years old and, therefore, it cannot be recovered in view of Section 56 of the Act. In support of his contention, he has placed reliance on a judgement of Supreme Court in the case of **Ajmer Vidyut Vitran Nigam Limited V. Rahamatullah Khan, (2020) 4 SCC 650**.

5. Sri Udit Chandra, learned counsel appearing for respondents Electricity Department submits that the dispute in question falls squarely within the purview of Consumer Grievance Redressal Forum, under Clause 7.10 of the U.P. Electricity Supply Code, 2005. He submits that since factual issues have been raised in the instant petition and, therefore, the petitioner should be relegated to the statutory remedy available under the Code 2005.

6. Clause 7.10 (ii) & (iii) stipulates that any consumer aggrieved by any action of the Licensee, in respect of the matters mentioned

in clauses 7.7.1 to 7.7.5 or those covered under the said Regulations may file a complaint with the Licensee. If the licensee fails to settle the complaint of the consumer within the time limits specified in the Code or otherwise provided in the Regulations, or the consumer is not satisfied by the decision of the licensee, the consumer may file a complaint in the Consumer Grievance Redressal Forum as per the specified procedure under the said Regulations. He submits that the dispute relating to carrying forward of the dues of the erstwhile tenant is a billing dispute covered under Clause 7.7.4 of the Code and the dispute relating to dues and new connection is covered by Clause 7.7.2 of the Code. He further submits that the judgement in **Rahamatullah Khan** has been distinguished by the Supreme Court in a latter judgement by Three Judges Bench in the case of **K.C. Ninan Vs. Kerala State Electricity Board & Ors., 2023 SCC Online SC 663**. He further submits that in any case, the aforesaid plea can also be raised by the petitioner before the Consumer Grievance Redressal Forum.

7. Having considered the rival submissions, we are satisfied that the petitioner has alternative efficacious remedy of approaching the Consumer Grievance Redressal Forum and, therefore, we decline to examine the challenge and leave it open to the petitioner to avail remedy provided under the Code.

8. It is also provided that in case the petitioner approaches the Consumer Grievance Redressal Forum, for redressal of his grievance, the Forum will decide the same expeditiously preferably within twelve weeks from the date complaint is filed before it.

9. The petition stands disposed of accordingly.

(Kshitij Shailendra,J.) (Manoj Kumar Gupta,ACJ.)

Order Date :- 17.1.2024

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